

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DARIUS CRUMP and KARSEEM HARRIS,

Plaintiffs,

-against-

CITY OF NEW YORK, ARIEL EUSEBIO and JOHN OR
JANE DOES, "1-10", Individually and officially in their
capacities as police officers,

Defendants.
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiffs designates Bronx
County as the place of trial.

The basis of venue is:
Plaintiffs' address

Plaintiffs reside at:
1350 Shakespeare Avenue
Bronx, New York 10452

To the above-named Defendant(s):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 29, 2022



John K. Kouroupas
GREENBERG & STEIN, P.C.
Attorney for Plaintiffs
DARIUS CRUMP and KARSEEM HARRIS
360 Lexington Avenue, Suite 1501
New York, New York 10017
(212) 681-2535
Our File No. 7140

TO:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

ARIEL EUSEBIO
POLICE OFFICER SHIELD NO.: 19648
52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

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COUNTY OF BRONX

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DARIUS CRUMP and KARSEEM HARRIS,

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CITY OF NEW YORK, ARIEL EUSEBIO and JOHN OR
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Defendants.
-----X

VERIFIED COMPLAINT

Index No.:

Date Purchased:

Plaintiffs, DARIUS CRUMP and KARSEEM HARRIS by their attorneys, GREENBERG & STEIN, P.C., as
and for their complaint against the Defendants, CITY OF NEW YORK, ARIEL EUSEBIO and JOHN or JANE
DOES "1-10", individually and officially in their capacities as police officers, allege and state as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action, in which Plaintiffs seeks relief, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self- executing clauses or implied private causes of action within the constitution of the State of New York, for the violations of their civil rights and the deprivations to his liberties, as enumerated and promulgated by the Fourth and Fourteenth Amendments to the Constitution of the United States, as well as the laws and constitution of the State of New York.

2. The following claims arose on or about May 28, 2020 when Defendants, acting under color of state law, unlawfully stopped, questioned, searched, assaulted, battered, arrested, and detained Plaintiffs without a valid judicially authorized arrest warrant, reasonable suspicion, probable cause, or any other legal justification to do so.

3. The above referenced acts caused Plaintiffs to be deprived of his liberty in violation of their rights to be free from unreasonable searches and seizures and to be afforded Equal Protection under the law.

4. Plaintiffs seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, together with such other and further relief as this Court may deem just and proper.

JURISDICTION

5. This action arises under the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, under 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988 and pursuant to the Laws and constitution of the State of New York.

6. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3) and (4), 1367(a) and the doctrine of supplemental jurisdiction.

VENUE

7. Venue is laid within the Supreme Court State of New York, County of Bronx in that Defendant City of New York is located within and a substantial part of the events giving rise to the claims occurred within the boundaries of the Supreme Court.

PARTIES

8. At all relevant times, Plaintiffs, **DARIUS CRUMP** ("Mr. Krump") and **KARSEEM HARRIS** ("Mr. Harris"), are adult African American males, residing in Bronx County, New York.

9. At all relevant times, Defendant, **CITY OF NEW YORK** ("City"), is a municipal corporation organized under the laws of the State of New York.

10. At all relevant times herein, the New York Police Department ("NYPD") is a wholly owned subsidiary, which is further wholly operated, managed, maintained, and controlled by Defendant City.

11. At all relevant times herein, Defendant City, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention, and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants, and other supervisory officers or officials, as well as the individually named Defendants herein.

12. At all relevant times herein, Defendant City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring that the NYPD personnel obey the laws and constitutions of the United States and the State of New York.

13. At all relevant times herein, Defendants, **JOHN OR JANE DOES, "1-10"**, were police officers, detectives, supervisors, policymakers or officials employed by the NYPD and or City of New York. At this time, Plaintiffs did not know the true names or tax registry numbers of Defendants, **JOHN OR JANE DOES, "1-10"**, as such knowledge is within the exclusive possession of Defendants. The names, **JOHN OR JANE DOES, "1-10"**, are fictitious and are meant as placeholders for the Police Officers who falsely arrested and subjected Plaintiffs to excessive force.

14. At all relevant times herein, Defendants, **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, are being sued in their individual and official capacities.

15. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the City of New York or State of New York.

16. That within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiffs' demands for adjustment thereof was duly served on the Plaintiffs behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to

the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

17. That pursuant to General Municipal Law 50-h, both plaintiffs appeared at a virtual 50-H hearing by the Office of the Comptroller or at the office of a designated agent.

18. At all times relevant hereto, Defendant City, acting through the New York City Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

19. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

FACTUAL CHARGES

20. On, or about, May 28, 2020, at approximately 11:00 a.m., Plaintiffs, **DARIUS CRUMP** and **KARSEEM HARRIS**, were enjoying some leisure time in the vicinity of 1350 Westchester Avenue, County of Bronx, State of New York, when defendants, including, **ARIEL EUSEBIO** and **JOHN OR JANE DOES, “1-10”**, illegally searched, seized, detained and arrested him.

21. Plaintiffs had not committed any crimes or violations of law, nor had there been any indication of such, and nor had they been accused of such by any identified civilian witnesses.

22. On said date and time, plaintiffs **CRUMP and HARRIS**, were enjoying some leisure time in the vicinity of 1350 Westchester Avenue, County of Bronx, State of New York, when Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, “1-10”**, aggressively approached, assaulted, questioned, and illegally detained plaintiffs **CRUMP and HARRIS**.

23. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, then yelled and continued to aim their weapons at plaintiffs **CRUMP and HARRIS**, and, causing plaintiffs **CRUMP and HARRIS** to experience severe humiliation, degradation, and the loss of his dignity as well as the shock of being confronted with a weapon.

24. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, then accused plaintiffs **CRUMP and HARRIS** of a criminal offense before investigating whether or not he could be positively identified as the individual they were looking for.

25. Due to the lack of probable cause, the aforementioned conduct by Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, constitute the completed torts of Assault and Battery.

26. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, never observed Plaintiffs committing any crime or violation of the law, or any act that could reasonably be suspected as such.

27. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, had no probable cause or reasonable suspicion to justify their seizure, search, questioning, detention, or arrest of Plaintiffs, as defendants did not possess any credible evidence that would lead a reasonable officer to believe that Plaintiffs had committed any crime or violation of the law.

28. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, engaged in a gross deviation from acceptable police conduct and other conduct undertaken in bad faith.

29. Plaintiffs asserts that Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, falsely arrested plaintiffs **CRUMP and HARRIS** and wrongfully detained Plaintiffs altogether with the full knowledge that the Plaintiffs had not actually committed any crimes or violations of the law.

30. As a result, Plaintiffs were caused to be unlawfully, involuntarily, and continuously detained by defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, until their release from physical custody when said defendants ended their illegal search.

31. At all times relevant hereto, Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, were involved in the decision to seize, search, detain, and arrest Plaintiffs without reasonable

suspicion or probable cause, or failed to intervene when they observed others doing do in the absence of any reasonable suspicion or probable cause.

32. At all times relevant hereto, Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, subjected Plaintiffs to excessive force, or failed to intervene when they observed others subjecting Plaintiffs to excessive force.

33. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, engaged in a conspiracy to falsely arrest plaintiffs **CRUMP and HARRIS** by personally conferring with each other regarding the fabrication of the aforementioned non-existent evidence, the suppression of exculpatory evidence, as well as the manner and means by which said fabrications could be used to deprive Plaintiffs of their liberty and violate their civil rights.

34. Plaintiffs assert that Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, illegally approached, seized, searched, and then falsely arrested him, due to their discriminatory prejudices against African Americans, their intent to use the instant arrest as leverage against plaintiffs or relatives of plaintiffs, so that he would provide defendants with information regarding other crimes or criminal suspects, their desires to fulfill an unconstitutional arrest quota, and to benefit from increased overtime compensation.

35. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, arrested Plaintiffs, because of their racially discriminatory beliefs, which compelled defendants to equate to Plaintiffs' ethnic or national origin to criminal guilt or criminal knowledge.

36. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, perpetrated multiple overt acts in furtherance of their obviously discriminatory inclinations, namely the complained-of stop, searches, assaults, batteries, seizure, arrest, and detention of Plaintiffs, even after they were unable to discover any evidence to justify such conduct.

37. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, unlawfully stopped, questioned, searched, seized, arrested, and detained plaintiffs, due to Defendants' perception or consideration of Plaintiffs' ethnicity or national origin.

38. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, possessed no valid reason to stop, question, search, or arrest Plaintiffs, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities.

39. Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, subjected Plaintiffs to disparate treatment compared to other individuals similarly situated, because defendants did not stop, seize, search, detain, arrest, or accuse any white individuals who had engaged in activity identical to the kind that resulted in Plaintiffs' illegal search and seizure, namely being lawfully present and sleeping in their home.

40. Plaintiffs assert that the Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City, NYPD, have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

41. The identities of Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, are unknown at this present time. However, these Defendants were participated in the false arrest, unlawful search, seizure, and detention of Plaintiffs. The identities of Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, are known exclusively to the Defendants.

42. The individually named defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD and the City of New York, in addition to their respective policymakers and supervisors.

43. Upon information and belief, the NYPD and City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved, or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiffs' arrests without probable cause.

44. Upon information and belief, the NYPD and City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

45. Defendants' actions, which occurred without even the semblance of probable cause, were so blatantly violative of his civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

46. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

47. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

48. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations

that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants ARIEL EUSEBIO, JOHN DOES 1-10.

49. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

50. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

51. The aforementioned acts of Defendants, including **ARIEL EUSEBIO** and **JOHN OR JANE DOES, "1-10"**, directly or proximately resulted in the deprivation or violation of Plaintiffs' civil rights, as guaranteed and protected by the Fourth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

52. As a direct or proximate result of said acts, Plaintiffs was caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Unlawful Search & Seizure Under New York State Law

53. The above paragraphs are hereby incorporated by reference as though fully set forth.

54. Defendants subjected Plaintiffs and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

55. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to his person and property.

56. Plaintiffs did not consent to the unreasonable searches and seizures to their person or property.

57. The unreasonable searches and seizures to Plaintiffs' person and property was not otherwise privileged.

58. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to Art. I, § 12, of the constitution of the State of New York and Art. II, § 8, of the New York Civil Rights Law.

59. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

60. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search & Seizure Under 42 U.S.C. § 1983 Against Individual Defendants

61. The above paragraphs are hereby incorporated by reference as though fully set forth.

62. Defendants subjected Plaintiffs and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

63. Plaintiffs was conscious and fully aware of the unreasonable searches and seizures to his person and property.

64. Plaintiffs did not consent to the unreasonable searches and seizures to his person or property.

65. The unreasonable searches and seizures to Plaintiffs' person and property was not otherwise privileged.

66. Accordingly, defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

67. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Negligent or Intentional Infliction of Emotional Distress Under New York State Law

68. The above paragraphs are hereby incorporated by reference as though fully set forth.
69. Defendants owed a duty of care to Plaintiffs.
70. Defendants breached that duty of care.
71. As a result, Plaintiffs were caused sustain emotional harm or distress.
72. The conduct of Defendants was extreme and outrageous.
73. Defendants' extreme and outrageous conduct was perpetrated with the intent to cause, or with disregard to a substantial probability of causing, severe emotional distress to Plaintiffs.
74. Defendants' extreme and outrageous conduct is causally related to Plaintiff's injuries.
75. As a result, Plaintiffs were caused to sustain extreme emotional distress.
76. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
77. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest & False Imprisonment Under New York State Law

78. The above paragraphs are hereby incorporated by reference as though fully set forth.
79. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.

80. Plaintiffs were conscious of their confinement.

81. Plaintiffs did not consent to their confinement.

82. Plaintiffs arrest and false imprisonment was not otherwise privileged.

83. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

False Arrest & False Imprisonment Under 42 U.S.C. § 1983 Against Individual Defendants

85. The above paragraphs are hereby incorporated by reference as though fully set forth.

86. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

87. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

88. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

89. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Assault & Battery Under New York State Law

90. The above paragraphs are hereby incorporated by reference as though fully set forth.

91. Defendants made Plaintiffs fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

92. Defendants engaged in and subjected plaintiffs to immediate harmful or offensive touching and battered them without their consent.

93. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Excessive Force Under 42 U.S.C. § 1983 Against Individual Defendants

95. The above paragraphs are hereby incorporated by reference as though fully set forth.

96. Defendants violated Plaintiffs' rights, under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

97. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without their consent.

98. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

99. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under New York State law

100. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

101. Plaintiffs are members of a racial or ethnic minority and protected class.

102. Defendants discriminated against Plaintiffs on the basis of their race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation

103. Defendants also engaged in the selective treatment of Plaintiffs, in comparison to others similarly situated.

104. Defendants' discriminatory treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiffs.

105. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

106. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiffs.

107. Defendants did not possess a rational basis, excuse, or justification for applying any laws or statutes against Plaintiffs.

108. Accordingly, defendants violated Plaintiffs rights, pursuant to Article I, § 11, of the New York State Constitution, Article VII, § 79-N, of the New York Civil Rights Law and § 296, 13, of the New York Human Rights Law.

109. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under 42 U.S.C.
§§ 1981 & 1983 Against Individual Defendants

111. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

112. Plaintiffs are members of a racial or ethnic minority and protected class.

113. Defendants discriminated against Plaintiffs on the basis of their race, color or ethnicity.

114. Defendants engaged in the selective treatment of Plaintiffs in comparison to others similarly situated.

115. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiffs for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

116. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

117. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.

118. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.

119. Accordingly, defendants violated Plaintiffs' rights, under the Fourteenth Amendment.

120. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under 42
U.S.C. §§ 1983, 1985 & 1986 Against Individual Defendants

122. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

123. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of their rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of their liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

124. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.

125. As a result, Plaintiffs sustained injuries to their persons, were deprived of their liberty or were deprived of rights or privileges of citizens of the United States.

126. Defendants' conspiracy was motivated by a desire to deprive Plaintiffs of their civil rights or because of some racial, otherwise class-based, invidious, or discriminatory animus.

127. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

128. Accordingly, defendants violated Plaintiffs rights, pursuant to the Fourth and Fourteenth Amendments to the Constitution of the United States.

129. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

130. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Failure to Intervene Under New York State Law

131. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

132. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

133. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

134. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION**Failure to Intervene Under 42 U.S.C. § 1983 Against Individual Defendants**

135. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

136. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

137. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

138. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION**Negligent Hiring, Training, Retention & Supervision Under New York State Law**

139. The above paragraphs are hereby incorporated by reference as though fully set forth.

140. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee defendants.

141. Defendant City breached those duties of care.

142. Defendant City placed defendants in a position where they could inflict foreseeable harm.

143. Defendant City knew or reasonably should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.

144. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.

145. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under 42 U.S.C. § 1983 Against Defendant City

146. The above paragraphs are hereby incorporated by reference as though fully set forth.

147. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

148. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

149. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with Defendant City’s employees.

150. Defendant City’s employees engaged in such egregious and flagrant violations of plaintiffs’ Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City’s employees.

151. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

152. Defendant City’s conduct caused the violation of Plaintiffs civil rights, pursuant to Constitution of the United States.

153. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) In favor of Plaintiffs in an amount to be determined by a jury for each of Plaintiff's causes of action;
- b) Awarding Plaintiffs punitive damages in an amount to be determined by a jury;
- c) Awarding Plaintiffs compensatory damages in an amount to be determined by a jury;
- d) Awarding Plaintiffs reasonable attorney's fees and costs pursuant to 42 U.S.C. § 1988; and
- e) Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiffs hereby demand a trial by jury.

Dated: New York, New York
September 29, 2022

Yours, etc,



John K. Kouroupas
GREENBERG & STEIN, P.C.
Attorney for Plaintiffs

DARIUS CRUMP and KARSEEM HARRIS
360 Lexington Avenue, Suite 1501
New York, New York 10017
(212) 681-2535
Our File No. 7138

TO:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

ARIEL EUSEBIO
POLICE OFFICER SHIELD NO.: 19648
52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

ATTORNEY'S VERIFICATION

JOHN K. KOUROUPAS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GREENBERG & STEIN, P.C., attorneys of record for Plaintiffs, **DARIUS CRUMP** and **KARSEEM HARRIS**. I have read the annexed **SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

DATED: New York, New York
September 29, 2022



John K. Kouroupas
GREENBERG & STEIN, P.C.
Attorney for Plaintiffs
DARIUS CRUMP and **KARSEEM HARRIS**
360 Lexington Avenue, Suite 1501
New York, New York 10017
(212) 681-2535

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DARIUS CRUMP and KARSEEM HARRIS,

Plaintiffs,

-against-

CITY OF NEW YORK, ARIEL EUSEBIO and JOHN OR
JANE DOES, "1-10", Individually and officially in their
capacities as police officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

GREENBERG & STEIN, P.C.

Attorneys for Plaintiffs

360 Lexington Avenue, Suite 1501

New York, New York 10017

(212) 681-2535

TO: